

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	16-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	16-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	60 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Bihar
विभाग का नाम/Department Name	Planning & Development Department Bihar
संगठन का नाम/Organisation Name	Planning And Development Department
कार्यालय का नाम/Office Name	Government
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :dpo.bhagalpur-bih@nic.in Buyer Email id: nipun.pa.pdd@bihar.gov.in
कुल मात्रा/Total Quantity	1
वस्तु श्रेणी /Item Category	High Mast Lighting Tower for large area with LED Flood Lighting System (Q3)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	5 Lakh (s)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)	10 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन /Past Performance	50 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	50% Lowest Priced Technically Qualified Bidders
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	1050000
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	21000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) / ePBG Percentage (%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) / Duration of ePBG required (Months).	60

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

DISTRICT PLANNING OFFICER

Government, Planning & Development Department Bihar, district planning officer bhagalpur

(District Planning Officer, Bhagalpur)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.

3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.

4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.

5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st

March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

6. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

7. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

8. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

9. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 50% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

10. Reverse Auction would be conducted amongst first 50% of the technically qualified bidders arranged in the order of prices from lowest to highest. Number of sellers eligible for participating in RA would be rounded off to next higher integer value if number of technically qualified bidders is odd (e.g. if 7 bids are technically qualified, then RA will be conducted amongst L-1 to L-4). In case number of technically qualified bidders are 2 or 3, RA will be between all without any elimination. If Buyer has chosen to split the bid amongst N sellers, then minimum N sellers would be taken to RA round. In case Primary products of only one OEM are left in contention for participation in RA based on lowest 50% bidders qualifying for RA, the number of sellers qualifying for RA would be increased to get at least products of one more OEM (directly participated or through its reseller) if available. Further, if bid(s) of any seller(s) eligible for MSE preference is / are coming within price band of 15% of Non MSE L-1 or if bid of any seller(s) eligible for Make in India preference is / are coming within price band of 20% of non MII L-1, then such MSE / Make in India seller shall also be allowed to participate in the RA process.

High Mast Lighting Tower For Large Area With LED Flood Lighting System (1 pieces)

तकनीकी विशिष्टियाँ / Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Height of High Mast Tower (in Meters)	16

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Installation and commissioning (Installation and commissioning work at multiple locations shall follow as per the guidelines of State/Central Govt rules and regulations as applicable)	Yes. Including Civil work at site
	Onsite warranty (in Years)	3
High mast System	No of sections	2
	Effective length of each section (in m)	8.5
	Material construction: The mast shall be manufactured using special steel plates, conforming to	355 grade as per BSEN10 025
	Bottom diameter (in mm) - Minimum	540
	Plate thickness for Middle (in mm) - Minimum	4
	Plate thickness for Bottom (in mm) - Minimum	5
	No of longitudinal welds / section (in Nos)	2
	Diameter of base plate (in mm) - Minimum	740
	Thickness of base plate (in mm) - Minimum	25
Wind Load	Maximum Wind load	55 m/sec
Door Opening	Size of opening and closing door at base compartment of high mast (in mm) - Minimum	1200 x 250
Junction Box	Ingress protection for Junction Box i.e. IP Class (as per IS/IEC:60529:2001 latest) Test Report from Central Government lab/NABL/ILAC accredited lab and report shall furnish to buyer on demand	IP 65
	No of core	3
	Cable category	FR
	Size of cable (in Sq mm)	2.5
	Conductor material shall be	Copper

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Winch	The winch shall have provision for manual operation in case of failure of the motor	Yes
Stainless Steel Wire Rope	The breaking load of each rope shall be at full load as per the relevant standard	>=2400 Kg
Electrical System, Cable and Cable Connections	No. of cores	2
	Cable shall be	Armoured
	Conductor material shall be	Copper
	Cable Category	C1
	Incoming power cable from feeder panel to base compartment of mast and cable shall conforming to	IS:7098 (Part 1):1988 latest
Feeder pillar Panel	Feeder pillar panel for each mast	Yes
	Feeder panel shall be suitable for	230 V, 1 phase, AC 50 Hz
	The control panels shall be	Stand mounted
	Ingress protection for feeder pillar panel i.e IP Class (as per IS/IEC:60529:2001 latest).Test Report shall furnish from Central Government lab/NABL/ILAC accredited lab to buyer on demand	IP 55
	It shall be fabricated out of	14 SWG CRCA sheet steel
	Thickness of sheet (in mm)	2
	The panels shall be given pre-treatment and powder coated and color shall be	Grey
	The stand shall be painted in	Black color
	Cable entry shall be at the	Bottom
	The panels shall have	knock outs of the required cable
	Laminated circuit diagram shall be pasted	inside of the door
	Feeder pillar shall have pad locking arrangement	Yes
	Earth terminal	12 mm dia. Bolts

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Panel shall have a sloping cover to avoid accumulation of dust	Yes
	Panel shall be provided with incoming & outgoing MCCB / MCB of appropriate rating and in desired quantity depending on total no of circuits in use	yes
	Timer for automatic ON & OFF of lights with pilot lamps shall be provided	Yes
	Bus bars material	Yes. Copper
	No of Cores	3
	Size of cable (in Sq.mm)	2.5
	Cable Shall be	Armoured
	The conductor material shall be	Copper
	cable category	1
LED FLOOD LIGHT LUMINAIRE	No. of Luminaires for each high mast lighting tower (in Nos)	10
	LED Rating/System Wattage/Rated Power for each luminaire	100W
	Luminaire System Efficacy (Lumen/watt)	>/= 100 Lm/Watt
	Ingress Protection (IP Rating) as per IS:10322 (Part 1):1982 latest	IP66
	Mounting brackets (included)	Adjustable
	Input operating Voltage range and frequency	140 to 270 Volts AC at 50 Hz+/-2 Hz with auto cutt off at below 120V
	Rated voltage	230 V AC 50 Hz
	Colour temperature	6000K (+/- 500K)
	Optic lense material (UV stabilised) (Write NA for without optic lense supply)	NA
	Operating temperature range	-20 deg C to +50 deg C
	The luminaire shall be protected against surges and transients(Internal)	>/=5KV

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Number of electronic control gear per luminaire (power supplies)	1 No.
	Length of ISI marked three core wire (shall be provided along with supply of material)	50 cm

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Nipun Kumar	812001,District Planning Office, Bhagalpur	1	30

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

- Bidder should have proprietorship firm registered under Shop & establishment Act 1953/ Registered under MSME or Company registered under the companies' act 1956 or 2013, or a partnership firm registered under the partnership act, 1932. - Upload any one registration certificate
- Bidder must upload a scanned copy of a Bank Draft amounting to Rs. 21,000/- (Twenty oneThousand only) towards the Earnest Money Deposit (EMD), drawn in favors of the District Planning Officer, Bhagalpur The original Bank Draft must be submitted physically at the office of the District Planning Office, Bhagalpur at least one (1) working day prior to the bid submission end date.
- Bidder must have a valid GST Registration Certificate, and a copy of the same must be uploaded along with the bid documents, along with a copy of the most recent updated GST return i.e.- May 2026

4. Bidder must upload copies of the Income Tax Return (ITR) for the last three financial years i.e., FY 2022-23, 2023-24, and 2024-25, along with a copy of the PAN card.
5. Bidder must have an average annual turnover of more than Rs. 500,000/- (Five Lakhs only) during the last three financial years, i.e., FY 2022-23, 2023-24 and 2024-25. Bidders are compulsorily required to upload copies of the Audited Balance Sheet and Profit & Loss Account Statement (with valid UDIN number) for each of the above-mentioned financial years.
6. Bidder must furnish an undertaking on the Company's Letterhead and a notarized affidavit stating that they have never been blacklisted, debarred, or suspended by any Government, Semi-Government, PSU, GeM, Bank, University, Educational Institution, or Autonomous Body for any reason.
7. Bidder must possess valid certifications of ISO 9001:2015 or latest, ISO 14001:2015 or latest, and ISO 45001:2018 or latest, and copies of above certificates must be uploaded along with the bid documents.
8. Bidder must upload a duly signed and stamped copy of the complete tender document, including additional terms and conditions, with each page properly signed and stamped as a confirmation of unconditional acceptance of all terms and conditions of the bid.
9. Bidder Work Experience - Experience of the tender to carry out similar work during last 7 years as follows - Three similar works has been completed whose average cost is equal to Rs 4,20,000.00 (Four lakh twenty thousand rupees) or Two similar works has been completed whose average cost is equal to Rs 5,25,000.00 (Five lakh twenty five thousand rupees) or One similar work has been completed whose average cost is equal to Rs 8,40,000.00(Eight lakh fourty thousand rupees)
10. Bidder must furnish a valid Character Certificate issued by the Superintendent of Police (SP)/DM Character Certificates of all Directors, Partners, or Proprietors of the bidding entity must be submitted along with the bid proposal. The certificate must not be older than six months as of the last date of tender submission
11. The bidder must furnish an undertaking on the Company's Letterhead stating that they accept all the terms and conditions mentioned in the bid documents.
12. BMSE Startup Company/Tender located in Bihar state If participates in the tender, then exemption to, work experience and Annual turnover under Bihar Procurement Preference Policy 2024 but no exemption of EMD.
13. Bidder must have Service Centre/Office in Bihar. Upload the Address and contact number.
14. Warranty should be 5-Year upload with bid.
15. Authorization letter of Pole and Light from Manufacturer.
16. LED Light of any reputed brand with minimum 150 Watt.
17. Should be equipped with auto sensor switch for ON/OFF in sun/day light.
18. One earth pit to be provided with every High Mast Light.
19. Copy of Product drawing/ Catalogue.

. The margin of Bihar procurement preference for this category of Tender to be 15%.

General Terms and Conditions:-

1. The Bidder shall quote prices inclusive of Supply and Installation & Commissioning and all taxes.
2. The bid of any bidder who has not complied with one or more of the conditions of eligibility criteria and/ or fail to submit the required documents as required / or mentioned in bid document and ATC documents before the last date & time of the bid submission are liable to be summarily rejected.
3. The supply of goods must be made at the colleges designated by the buyer. No additional charges shall be entertained for delivery to these specified locations.
4. Payment will be made after supply and installation and on the basis of receipt of material from the Principal/concerned person from college.
5. No extra cost will be borne by the buyer for services related to the delivery of article. Rate quote will be considered as inclusive of direct, indirect and local tax No GST/other tax will be charged in addition quoted price.

6. The Buyer / Chairman Purchase Committee reserves the right to reject this bid partially/fully without assigning any reason.
7. Any dispute is subject to Bhagalpur Jurisdiction only.

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---